



CHAPTER lvi.

An Act to confer further powers on the urban district council of Shipley in regard to their water gas and electricity undertakings and to make further and better provision for the improvement and local government of the district and for other purposes. A.D. 1912.

[7th August 1912.]

WHEREAS the district of Shipley in the west riding of the county of York (in this Act called "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Shipley Urban District Council (in this Act called "the Council"):

And whereas it is expedient that the lord mayor aldermen and citizens of the city of Bradford should be empowered to lease or grant to the Council for the purposes of the water undertaking of the Council and that the Council should be empowered to take a lease or grant of any rights over certain lands recently purchased by the said lord mayor aldermen and citizens from William Ferrand and William Harris Ferrand which the said lord mayor aldermen and citizens are or may be entitled to exercise:

And whereas it is expedient that further powers as in this Act contained should be conferred upon the Council with respect to their water gas and electricity undertakings:

And whereas it is expedient to make further provision in regard to streets and buildings in the district and that the powers of the Council in relation to the health local government and improvement of the district be enlarged as by this Act provided:

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And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas the following adoptive Acts are in force within the district (namely):—

The Infectious Disease (Notification) Act 1889;

The Infectious Disease (Prevention) Act 1890 sections 2 3
5 8 9 10 11 13 14 16 17 18 20 21 and 24;

The Baths and Washhouses Acts 1846 to 1899;

The Public Libraries Acts 1892 to 1901;

The Private Street Works Act 1892;

The Public Health Acts Amendment Act 1890 Parts II. III.
IV. and V.;

The Notification of Births Act 1907:

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-eighth day of November nineteen hundred and eleven after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Shipley Times and Express a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas the said resolution was published twice in the said Shipley Times and Express and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the thirtieth day of January nineteen hundred and twelve being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PART I.

PRELIMINARY.

1. This Act may be cited as the Shipley Urban District Council Act 1912. Short title.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Water.

Part III.—Gas.

Part IV.—Electricity.

Part V.—Streets Buildings Sewers and Drains.

Part VI.—Infectious Disease and Sanitary Provisions.

Part VII.—Public Library Rate.

Part VIII.—Financial.

Part IX.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(1) The Waterworks Clauses Act 1847 (except sections 75 to 82 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts) but that Act shall be read and have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted from section 44 (Undertakers to lay down communication pipes on request of occupier and with consent of owners) thereof;

(2) The Waterworks Clauses Act 1863;

(3) The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are

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carried on for their benefit and sections 38 43 and 47) ;
and

(4) The Gasworks Clauses Act 1871 (except sections 7 8
and 35 thereof).

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The district” means the urban district of Shipley in the west riding of the county of York ;

“The Council” means the urban district council of the district ;

“The clerk” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the clerk the medical officer of health the surveyor and the inspector of nuisances of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district ;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district ;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction ;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be

made or given by authority of any Act of Parliament A.D. 1912.
passed or to be passed ;

“ Revenues of the Council ” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council ;

“ The Act of 1870 ” “ the Act of 1874 ” “ the Act of 1901 ” and “ the Act of 1904 ” mean respectively the Shipley Gas Act 1870 the Shipley Local Government Act 1874 the Shipley Improvement Act 1901 and the Shipley Urban District Council Act 1904.

PART II.

WATER.

5. The lord mayor aldermen and citizens of the city of Bradford may lease or grant to the Council and the Council may take a lease or grant of any rights over the lands forming part of Morton Moor and Bingley Moor in the parishes of East and West Morton and Bingley in the west riding of the county of York and known as the Whetstone Allotment Kirkstones or Brown Seaves High Moor The Square The Fenny Shaw Allotment the Low Moor Bingley Moor or Ferrands Moor and the Ash House Allotment which the said lord mayor aldermen and citizens are or may be entitled to exercise.

Power to Bradford Corporation to lease or grant to Council rights over lands at Morton Moor and Bingley Moor.

6.—(1) The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Supply by measure.

(2) Section 11 (Water for other than domestic purposes) of the Act of 1874 is hereby repealed.

7.—(1) A supply of water for domestic purposes shall not include a supply of water for cattle or for horses or for washing carriages or motor cars or a supply for any trade manufacture

As to supply of water for other than domestic purposes.

A.D. 1912. or business or for watering gardens or for fountains or for any ornamental purpose:

Provided always that in the case of stables or premises in which horses carriages or motor cars are kept for private use and which are occupied with and rated along with any private dwelling-house the water supplied for domestic purposes may be used for such stables or premises if the water rate is assessed upon the annual rack-rent or value of the private dwelling-house including such stables or premises and no additional charge shall be made for water supplied to such stables or premises unless a hose pipe or similar apparatus be used in which case the Council may make such additional charge therefor not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

(2) Section 10 (What shall be deemed domestic purposes) of the Act of 1874 is hereby repealed.

Price of supply by measure.

8. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per one thousand gallons.

Exemption of fittings from distress execution &c.

9. Any fittings let for hire under the provisions of section 40 (Power to Council to supply fittings) of the Act of 1901 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

As to communication pipes.

10.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break

up any street in the district execute such works on behalf of such owner or occupier and any expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt. A.D. 1912.

11. Before any person connects or disconnects any meter by means of which any water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and the connecting and disconnecting of meters and all alterations or repairs in connection therewith shall be done at his cost and under the superintendence of an officer of the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Council of connecting or disconnecting meters.

[PART III.]

GAS.

12.—(1) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Quality of gas.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Council shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

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Testing
place.

13. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Council in some convenient part of their works within three months after the passing of this Act.

Repeal of
certain sec-
tions of Act
of 1870.

Supply of
gas where
consumer
has separate
supply.

14. Sections 35 (As to quality of gas) and 36 (Test meters to be erected) of the Act of 1870 are hereby repealed.

15. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Council a supply or the continuance of a supply of gas for premises having a separate supply (that is to say a supply from an installation other than that of the Council) unless he shall have previously agreed to pay the Council such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Power to
lay down
pipes for
ancillary
purposes.

16.—(1) The Council may lay down and repair take up alter or relay or renew mains pipes and culverts within the Council's limits for the supply of gas for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

(2) The provisions of section 36 (For protection of Great Northern Railway Company) of the Act of 1901 shall extend and apply mutatis mutandis to any mains pipes and culverts laid down repaired taken up altered or relaid or renewed under the provisions of this section.

Fittings
though fixed
to premises
to remain
property of
Council.

17.—(1) Subject as hereinafter provided all engines stoves ranges pipes and other fittings let by the Council on hire under section 35 (Power to supply gas fittings engines and other apparatus) of the Act of 1901 shall notwithstanding that they

be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Council Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such engines stoves ranges pipes and other fittings are or shall be fixed. A.D. 1912.

(2) The Council shall only be entitled to the privileges and exemptions conferred by this section in respect of such engines stoves ranges pipes and other fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

18. Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Council may cease to supply gas to such consumer The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Power to require use of anti-fluctuators for gas engines.

19. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Council. Period of error in defective meters.

20.—(1) The Council may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply. Charges for gas supplied by prepayment meters.

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(2) The Council shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Council in connection with the meter and fittings.

(3) The Council shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Council in connection with the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

PART IV.

ELECTRICITY.

Provision in
event of
erroneous
registration
by meter in
respect of
supply of
electricity.

21. In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable

in the like manner as charges for electricity are recoverable by the Council. A.D. 1912.

PART V.

STREETS BUILDINGS SEWERS AND DRAINS.

22.—(1) Every continuation of an existing street shall for the purposes of the Public Health Acts and of the Act of 1901 and this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street.

Continuation of existing streets to be deemed new streets.

(2). Section 118 of the Act of 1901 is hereby repealed.

23. Where in the opinion of the Council a new street not being a back street will form a continuation of or means of communication with a main thoroughfare in the district or a continuation of or means of communication with a main approach to the district the Council may if they see fit require the houses or other buildings intended to be erected in such new street to be set back from the centre line thereof to such distance not exceeding thirty feet as they may see fit and the Council shall thereupon make full compensation to the owner or owners of and to any other person interested in the lands abutting upon the said new street for any damage which may be sustained by him or them by reason of such houses or other buildings being required to be set back as aforesaid and failing agreement the amount of such compensation shall be determined by arbitration in the manner provided by the Lands Clauses Acts:

Width of new streets in certain cases.

Provided always that the Council may if they think fit instead of paying the compensation to such owner or owners under this section agree with him or them for the purchase of the said lands or any part or parts thereof.

All moneys payable by the Council by way of compensation or for the purchase of lands under this section may be defrayed out of moneys authorised by this Act to be borrowed with the sanction of the Local Government Board.

For the purpose of this section "back street" means any street or passage intended to be used only as an access to the back of any building.

24. When a road or lane within the district is about to become by reason of building operations a new street within the meaning of the Public Health Act 1875 but the

Further provisions as to new streets.

A.D. 1912. land on only one side of such street is about to be built on the Council may instead of requiring the owner of such land to widen such road or lane to a width prescribed by the byelaws in force within the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land Provided that if and when the land on the opposite side of such road or lane shall be built on the Council shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Council.

Intersecting
streets.

25.—(1) No street shall be laid out of more than one hundred and thirty yards in length without an intersecting street at intervals of not more than one hundred and thirty yards in any such street Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(2) Section 113 (Intersecting streets) of the Act of 1901 is hereby repealed.

For pre-
venting
water flow-
ing on foot-
path.

26. Where premises abutting upon any street are so situate that the surface water from such premises flows on to the footpath of such street the owner of such premises shall within one month after service of an order of the Council for that purpose execute such works as may be necessary to prevent the water from such premises from flowing over the footpath and in default of compliance with such order within the period aforesaid such owner shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings.

Means of
escape from
buildings in
case of fire.

27.—(1) Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction. A.D. 1912.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

28. Notwithstanding any provisions contained in any public or local Act or byelaw in force within the district regulating the construction of buildings the Council shall have power to relax or modify such provisions in the following cases and subject to the following provisions (that is to say):--

As to build-
ings of iron
steel or rein-
forced con-
crete.

(1) Where a person is desirous of erecting an iron steel or reinforced concrete building or structure he shall make an application to the Council accompanied by complete plans sections and elevations of the proposed building with such details and other particulars as to the construction thereof as may be required by the Council:

(2) The Council if satisfied with such plans sections elevations details and particulars shall signify their approval of the same in writing and thereupon the building may be constructed according to such plans sections elevations details and particulars:

(3) The Council may for the purpose of regulating the procedure in relation to such applications and in reference to the excavations for or foundations of or the erection of such building and structure make and issue such general rules as they think fit as to the place time and manner of making applications and as to the plans sections elevations details and particulars to be deposited with the Council and as to the precautions to be taken in connection with any such excavation foundation or erection for safeguarding the stability of the street and the property therein and the public safety and convenience and otherwise and as to any other matter or thing connected therewith respectively.

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Erection of
buildings to
greater
height than
adjoining
buildings.

29.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Sanitary
conveniences
for workmen
engaged on
buildings.

30.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the district shall where practicable provide to the reasonable satisfaction of the Council and until the completion of any such work or operation sufficient water or other closets and urinals.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Combined
drain not to
be a sewer.

31. Any combined drain constructed after the passing of this Act in pursuance of section 161 (Council may order houses &c. to be drained by a combined operation) of the Act of 1901 shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

32. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Power to
lay drains in
private
streets.

33. The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction

34. If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

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Council may make communication between drains and sewers.

35.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the surveyor twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

Notice of intention to repair drains.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Council authorised in writing by the clerk for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

36. The Council may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of the district of such dimensions and in such positions as they may from time to time determine.

Street or-
derly bins.

37. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Part of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he

Penalty on occupiers refusing execution of Act.

A.D. 1912. might otherwise have become liable by reason of his default in executing such works.

Saving as to railway companies.

38. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connection with their railway under any Act of Parliament.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Provisions as to retailers of milk.

39. The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Council under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the district for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets.

Compensation to persons ceasing employment.

40. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Council may supply antidotes against infectious disease.

41. The Council may provide and supply (without charge therefor) to any medical practitioner antidotes and remedies against infectious disease.

Information to be furnished to medical officer and penalty for furnishing false information.

42.—(1) The occupier of any building in the district which is used for human habitation and in which there is or has been any person suffering from a dangerous infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889. A.D. 1912.

43.—(1) No person being the parent or having the care or charge of a child within the district who is or has been attending any school which has been closed by order of the Council with the view of preventing the spread of infectious disease shall permit such child to attend any Sunday school in the district without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school without undue risk of communicating disease to others. To prevent spread of infectious disease amongst children in Sunday schools.

(2) Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings.

44.—(1) If the Council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the district require the closing of any Sunday school or any department thereof or the exclusion of certain children for a specified time such requirement shall be at once complied with. Power to close Sunday schools to prevent spread of disease.

(2) Any person responsible for the conduct or management of any Sunday school wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding one pound.

45.—(1) As from the passing of this Act section 186 of the Act of 1901 shall be and the same is hereby repealed. For regulating manufacture and sale of ice cream &c.

(2) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who within the district—

(A) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or

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omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence upon summary conviction therefor to a penalty not exceeding forty shillings.

(3) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Council may compensate the owner of the ice cream commodity or materials so destroyed.

(4) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable upon conviction to a penalty not exceeding forty shillings.

(5) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable upon conviction to a penalty not exceeding forty shillings for each offence.

(6) The Council shall cause public notice to be given of the effect of the provisions of this section by advertisement in a local newspaper and by handbills and otherwise in such manner as they think sufficient and the provisions of this section shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

(7) Any expenses of the execution by the Council of this section shall be defrayed out of the district fund and general district rate. A.D. 1912. —

46.—(1) The Council may appoint more than one inspector of nuisances and sections 189 and 191 of the Public Health Act 1875 shall for the purposes of the execution of that Act within the district be construed accordingly. Power to appoint additional inspectors of nuisances.

(2) One of such inspectors of nuisances shall be appointed by the Council as chief inspector of nuisances.

(3) The county council of the west riding of Yorkshire shall not be required to pay any part of the salary of more than one inspector of nuisances for the district.

47.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Public notice to be given of provisions of this Part of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VII.

PUBLIC LIBRARY RATE.

48. Notwithstanding anything in the Public Libraries Acts 1892 and 1893 the rate or addition to a rate for the purposes of the said Public Libraries Acts in the district for any one financial year may amount to but shall not exceed one penny halfpenny in the pound. Rates for public libraries.

PART VIII.

FINANCIAL.

49.—(1) The Council may independently of any other borrowing power borrow at interest the sum requisite for paying the costs charges and expenses of this Act: Power to borrow.

Any money borrowed under this subsection shall be repaid within five years from the passing of this Act.

A.D. 1912. (2) The Council may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act:

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Local Government Board.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge—

As regards moneys borrowed for the purpose of paying the costs charges and expenses of this Act the district fund and general district rate:

As regards moneys borrowed with the consent of the Local Government Board such fund rate or revenue as that Board may prescribe:

The provisions of this subsection shall not limit the powers conferred on the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

As to temporary borrowing.

50.—(1) For the purpose of providing temporarily during any financial year for their current expenses as a sanitary authority (whether under the provisions of public general or local Acts) or for the current expenses of their water gas electricity or tramway undertakings respectively and after the commencement of such year it shall be lawful for the Council to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in the aggregate at any time an amount equal to one fourth of the total amount of the before-mentioned expenses for the immediately preceding financial year and any amount so borrowed shall form a charge upon the rates or undertaking in respect of which it is borrowed as the same may be specified in the resolution of the Council authorising such borrowing *pari passu* with any bond or mortgage affecting the same and it shall further be lawful for the Council to utilise for providing temporarily for any such expenses any sinking funds which they may have on hand crediting the said sinking funds with such fair rate of

interest not being less than three per centum per annum as they may resolve Provided that— A.D. 1912.

(A) All sums so borrowed in respect of the current expenses of any financial year shall be repaid out of the revenue of such year and (except in the case of moneys borrowed for the current expenses of the water gas electricity or tramway undertaking which shall be repaid before or within two months after the expiry of such year) before the expiry of such year:

(B) The clerk shall within three months after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require:

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Council have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(2) The provisions of this section shall cease to be in force at the expiration of four years from the thirty-first day of March one thousand nine hundred and twelve unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

51. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in

Section 234
of Public
Health Act
not to apply.

A.D. 1912. section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Application
of moneys
borrowed

52. All moneys borrowed by the Council under this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable. Provided that moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Council with the approval of the Local Government Board determine.

Application
of provisions
of Acts of
1901 and
1904.

53. The following provisions of the Act of 1901 and the Act of 1904 with any necessary modifications and subject as regards mortgages granted under the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes" to the provisions of that section shall extend and apply to and for the purposes of this Act as if the same were re-enacted in this Act (namely):—

The Act of 1901—

Section 233 (Provisions as to mortgages);

Section 236 (Sinking fund);

Section 238 (Protection of lender from inquiry);

Section 239 (Council not to regard trusts):

The Act of 1904—

Section 34 (Mode of payment off of money borrowed).

Power to
use one form
of mortgage
for all pur-
poses.

54.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever

and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same

A.D. 1912. shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Power to
use sinking
fund instead
of borrowing.

55.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to

be exercised by the user of money from such sinking fund; A.D. 1912.

(B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

56.—(1) The Council shall have power—

Power to
re-borrow.

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to

A.D. 1912. the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 237 (Power to re-borrow) of the Act of 1901 and section 38 (Power to re-borrow) of the Act of 1904 are hereby repealed but without prejudice to anything done or suffered to be done thereunder.

Returns to
Local
Government
Board as to
sinking
funds.

57.—(1) The clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any of the moneys raised by the Council in pursuance of any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by a statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event

of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court. A.D. 1912.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

58. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for) shall be paid out of the district fund or general district rate or the revenue of the gas or water undertaking as the case may be. Expenses of
executing
Act. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

PART IX.

MISCELLANEOUS.

59. The Council may erect or fix street fire alarms in such positions in any street road or public place within the district as they think fit. Fire alarms. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

A.D. 1912.

As to breach
of conditions
of consent of
Council.

60. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

In executing
works for
owner Coun-
cil only
liable for
negligence.

61. Whenever the Council or the surveyor under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Expenses
may be de-
clared pri-
vate im-
provement
expenses.

62. The Council may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

Consent of
Council to be
in writing.

63. All consents given by the Council under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk.

Apportion-
ment of
expenses in
case of joint
owners.

64. Where under the provisions of this Act or the Act of 1901 the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Council from the owners shall be paid by the owners of

such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. A.D. 1912.

65. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

66. The provisions of section 102 (Power of entry of local authority) section 103 (Penalty for disobedience of order) and section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of Part V. of this Act as if those purposes had been mentioned in the said sections. Application of certain sections of Public Health Act 1875.

67. The following sections of the Act of 1901 and the Act of 1904 are incorporated with this Act and shall apply as if the same with the necessary modifications were set out in this Act (namely) :— Incorporation of certain sections of Acts of 1901 and 1904.

Of the Act of 1901—

- Section 253 (Informations by whom to be laid);
- Section 254 (Evidence of appointments authority &c.);
- Section 255 (Authentication and service of notices &c.);
- Section 256 (As to appeal);
- Section 257 (Recovery of penalties);
- Section 259 (Penalties to be paid over to treasurer);
- Section 260 (Compensation &c. how to be determined);
- Section 262 (Saving for indictments &c.);
- Section 263 (Judges &c. not disqualified);
- Section 266 (Powers of Act cumulative):

Of the Act of 1904—

Section 43 (Inquiries by Local Government Board).

68. Section 53 (Contents of warrant) section 54 (Warrant shall include costs) and section 55 (Liability to rates &c. not to disqualify justices) of the Act of 1874 are hereby repealed. Repeal of certain sections of Act of 1874.

[Ch. lvi.] *Shipley Urban District Council* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

Crown
rights.

Expenses of
Act.

69. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

70. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

The SCHEDULE referred to in the foregoing Act.

A.D. 1912.

FORM OF MORTGAGE.

By virtue of the Shipley Urban District Council Act 1912 and in exercise of all other powers vested in us or enabling us in this behalf we the Shipley Urban District Council (hereinafter called "the Council") in consideration of the sum of pounds paid to the treasurer of the Council by

(hereinafter called "the mortgagee") do grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be borrowed upon the credit of the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of one thousand nine hundred and until the said sum of pounds with interest thereon at the rate of per centum per annum for the same shall be fully paid and satisfied (subject as hereinafter provided) And it is hereby declared that the said principal sum shall be repaid [(subject as hereinafter provided) on the day of one thousand nine hundred and] at the office of the treasurer of the Council at Shipley in the county of York and that in the meantime interest shall be paid half-yearly on the day of and the day of in each year by cheque drawn on the bankers of the Council and sent by post to the mortgagee at [his] address as registered in the books of the Council the first payment of interest to be made on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman or vice-chairman and the clerk of the Council for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal
to be hereunto affixed this day of one
thousand nine hundred and .

A.D. 1912.

THE ENDORSEMENT WITHIN REFERRED TO.

The within named
consenting the within-mentioned time for repayment of the within-
mentioned principal sum of

is hereby extended to the
day of one thousand nine hundred and
[and the interest to be paid thereon on and
from the day of one thousand
nine hundred and is hereby declared to be
at the rate of per centum per annum].

Dated this day of
one thousand nine hundred and .

FORM OF TRANSFER OF MORTGAGE.

I [the within named]
[of]
in consideration of the sum of
pounds paid to me by
of
(hereinafter called "the transferee") do hereby transfer to the transferee
his executors administrators and assigns [the within-written security]
[a certain mortgage number bearing date the
day of one thousand nine hundred and and
made by the Shipley Urban District Council under the Shipley Urban
District Council Act 1912 and other Acts for securing the sum of
pounds and interest thereon at per centum per annum]
and all my right estate and interest in and to the money thereby
secured and in and to the rates thereby assigned to hold unto the
transferee his executors administrators and assigns subject to the
several conditions on which I held the same immediately before the
execution hereof and the transferee for himself his executors adminis-
trators and assigns doth hereby agree to accept and take the said
mortgage subject to the conditions aforesaid.

Dated this day of one thousand nine hundred
and .

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